

for the removal from office of a board member. The Enlarged Board's decision was final in that it terminated the proceedings, albeit for non-substantive reasons. The Enlarged Board decided that the decision be published.

5.7. Reimbursement of costs

According to Art. 12a(10) RPEBA the Enlarged Board may on request propose the reimbursement of some or all costs incurred in the proceedings by the respondent if the request to make a proposal for their removal from office has been rejected (see G 2301/15). In G 2302/15 the proceedings were terminated following the Administrative Council's withdrawal of its request during oral proceedings. The Enlarged Board proposed the reimbursement of all costs incurred by the respondent, as the costs for preparing his defence had turned out to be unnecessary as a result of the withdrawal.

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1. Introduction

Representation of natural or legal persons in proceedings established by the EPC may only be undertaken by professional representatives whose names appear on a list maintained for this purpose by the EPO (Art. 134(1) EPC). Any natural person who is a national of a contracting state, has his place of business or employment in a contracting state and has passed the European qualifying examination may be entered on the list

(Art. 134(2) EPC; see also Art. 134(3) EPC). Legal practitioners from the contracting states are also entitled to act as representatives, subject to certain conditions (Art. 134(8) EPC), and persons resident or having their principal place of business in a contracting state may authorise an employee to represent them (Art. 133(3) EPC).

Art. 134a EPC, introduced under the EPC 2000, incorporates the substance of Art. 134(8) EPC 1973 and anchors in the Convention the existence of the Institute of Professional Representatives before the EPO ("*epi*"), which was set up under the Regulation on the Establishment of an Institute of Professional Representatives before the EPO (OJ 1978, 85; as amended: OJ 1997, 130 and 350, OJ 2002, 429, OJ 2004, 361 and OJ 2007, 12).

All persons on the list of professional representatives must be members of the *epi* (Art. 134a(2) EPC; Art. 5(1) of the aforementioned Regulation). They are subject to the Regulation on Discipline for Professional Representatives (RDR, OJ 1978, 91; as amended: OJ 2008, 14; OJ 2018, A57; see also Art. 134a(1)(c) EPC) and to the Code of Conduct of the Institute of Professional Representatives before the EPO (OJ 2003, 523).

The first-instance bodies which rule on infringements of the rules of professional conduct are the *epi* Disciplinary Committee and the EPO Disciplinary Board (Art. 5 RDR; see also Additional Rules of Procedure of the Disciplinary Committee and those of the Disciplinary Board, OJ 1980, 176, and 177 and 183, respectively; for amendments, see OJ 2007, 552). These provisions are also published in OJ Supplementary publication 1 of each year. The Disciplinary Board of Appeal (DBA) hears appeals against decisions of both these bodies (Art. 5, 8 RDR; see also Additional Rules of Procedure of the DBA – RPDBA, OJ 1980, 176 and 188; for amendments, see OJ 2007, 548). These provisions are also published in OJ Supplementary publication 1 of each year. DBA decisions on disciplinary matters are reported in this chapter V.C.3-5.

For further information on representation before the EPO, see chapter III.V. For more details of the changes introduced by the EPC 2000, see also OJ SE 4 and 5/2007.

The European qualifying examination (EQE), referred to in Art. 134(2)(c) EPC, is governed in particular by the Regulation on the European qualifying examination for professional representatives before the EPO (REE, version in force from 1.1.2009, OJ 2009, 9, and also Supplementary publication 2, OJ 2019, 2) and its Implementing provisions (IPREE, Supplement to OJ 5/2009, 20; as amended: Supplementary publication 2, OJ 2019, 18). For the Instructions to candidates concerning the conduct of the EQE, see OJ 2022, A20.

A number of substantive changes were introduced by the 2009 version of the REE. These included the creation of a Supervisory Board (Art. 1(6), 2, 3 REE), which is responsible for adopting the IPREE (Art. 3(7) REE), and the introduction of a pre-examination (Art. 1(7), 11(7) REE, R. 10 IPREE). Other modifications were: simplification of the enrolment requirements in respect of academic qualifications and professional experience (Art. 11 REE, R. 11 to 15 IPREE); replacement of the rules on modular sitting by the option to take one or more papers at one sitting (Art. 15 REE); extension of the compensation

system to all candidates (Art. 14 REE, R. 6 IPREE); streamlining of the appeal procedure (Art. 24 REE).

The DBA hears appeals against decisions of the EQE Examination Board and Secretariat (Art. 24 REE). DBA decisions in EQE cases are reported in this chapter V.C.2.6. Appeals decided under earlier provisions are referred to if considered still relevant.

2. European qualifying examination (EQE)

In principle, only persons who have passed the EQE may be entered on the list of professional representatives (Art. 134(2)(c) EPC; see also Art. 134(3) EPC). The OJ references for provisions applicable to the EQE are given in the Introduction above.

2.1. Formalities and conditions for registration and enrolment

The Examination Secretariat decides on the registration and enrolment of candidates in accordance with the REE and the IPREE (Art. 9(2)(c) REE).

In D.4/08 the board confirmed the Examination Secretariat's strict application of the published closing date for enrolment for the EQE (Art. 20 REE 1994; cf. Art. 18 REE), stressing its importance for the timely and orderly preparation of the examination. According to D.7/08, it followed from the applicable provisions that it was the candidate's responsibility to file the complete application, including the enrolment form and all necessary supporting evidence, by the closing date (see also D.12/08, D.15/09, D.3/18, D.4/18, and R. 1(2) IPREE).

2.1.1 Required qualification or equivalent knowledge

To qualify for registration and enrolment, candidates must normally possess a university-level scientific or technical qualification, i.e. a bachelor's degree or equivalent academic degree awarded at the end of a full-time course of a minimum of three years, with at least 80% of the course hours taken to obtain this degree having been devoted to scientific and/or technical subjects (Art. 11(1)(a) REE, R. 11 IPREE, also R. 12 IPREE). The qualifying subjects include biology, biochemistry, chemistry, construction technology, electricity, electronics, information technology, mathematics, mechanics, medicine, pharmacology and physics (R. 13 IPREE). The EQE provisions do not distinguish between applied and pure mathematics; nor does it matter if the subject is taught as part of a specialised or an interdisciplinary course (D.5/18).

There is no legal requirement as to the minimum number of course hours required; to establish if a candidate's degree qualifies, the legislator chose the number of years (a "minimum" benchmark easier to establish than the number of hours) and the percentage of courses devoted to technical and/or scientific subjects (D.13/14). The board in D.9/14 emphasised that the 80% is always to be calculated from the required course hours for the particular degree under scrutiny (which in the case in hand required four years of study). Furthermore, as many educational establishments issue certificates indicating the awarded credits, but not necessarily the course hours, it considered that a calculation

based on credits may be suitable for the purposes of R. 11(2) IPREE but that, in the case of any discrepancy between the calculations based on course hours and those based on credits, the former is authoritative. In D. 3/18, D. 5/18 and D. 3/20 the calculation was based on course credits awarded under the European Credit Transfer and Accumulation System (ECTS). See also D. 4/18 and D. 2/19 (both non-ECTS cases).

Otherwise, under Art. 11(1)(a) REE and R. 14 IPREE, equivalent knowledge may be demonstrated on the basis of at least ten years' experience in the activities defined in Art. 11(2)(a) REE (as to which see the next section). The board applied R. 14 IPREE in D. 9/13 and D. 9/14, concluding in each case that neither alternative of Art. 11(1)(a) REE was fulfilled. In cases D. 7/14 and D. 8/14, however, the appellants had started their practical training before the amended REE entered into force on 1.1.2009. The DBA held that, on the basis of good faith and equal treatment, the REE 1994 with its IPREE and relevant Instructions should be applied in accordance with the Examination Secretariat's practice before 1.1.2009 (see e.g. D. 1/12). Taking into account in particular D. 5/08 regarding the 1994 Instructions, the board was satisfied in both cases that the appellant was suitably qualified under the 1994 provisions. Other decisions on the qualifications required under the REE 1994 are D. 15/04, D. 17/04, D. 18/04, D. 8/04 and D. 10/08.

See also D. 3/20, according to which the Secretariat was correct in admitting the appellant to the EQE only under Art. 11(2)(a) REE and R. 11(3), 14 IPREE and in finding that the requirements of Art. 11(1)(a) REE and R. 11(1), (2) IPREE were not fulfilled.

2.1.2 Professional experience

A further requirement for enrolment is that at the date of the examination a candidate must normally have worked full-time for at least three years in the field of European patent applications and European patents in a contracting state, as set out in Art. 11(2) to (5) REE and R. 15 IPREE. For the pre-examination the period is reduced by one year (Art. 11(7) REE). The period may be reduced by six months for candidates who have successfully completed specialised studies of at least one academic year in the field of industrial property (R. 16(1) IPREE).

One way of acquiring this work experience is to complete a training period under the supervision of and as an assistant to one or more professional representatives before the EPO, in accordance with Art. 11(2)(a)(i) REE. According to D. 4/86 (OJ 1988, 26), to comply with the equivalent provision (Art. 7(1)(b)(i) REE 1977, as amended), the trainee had to have completed his training period under conditions likely to ensure that he had actually assisted a professional representative by constantly taking part in activities pertaining to patent application procedures of which the representative was in fact in charge. D. 14/93 (OJ 1997, 561) ruled that the training period could not be served with a legal practitioner whose name did not appear on the list of professional representatives, even if the said practitioner was a patent attorney under national law (see Art. 134(7) EPC 1973; cf. Art. 134(8) EPC). The activities referred to in Art. 7(1)(b) REE 1991 presupposed the scientific or technical knowledge required for activities pertaining to European patent applications and patents; persons training EQE candidates needed to possess such knowledge, and legal practitioners did not normally do so.